

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
TELL BEHARRY,

Plaintiff,

-against-

**SUMMONS**

**Index No.:**

**Date Filed:**

MAYOVANEX RODRIGUEZ and REINEL NEGRON,

Defendants.  
-----X

TO THE ABOVE NAMED DEFENDANT(s):

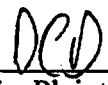
***YOU ARE HEREBY SUMMONED*** to answer the complaint in this action by serving an answer, or notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this summons, exclusive of the day of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is place of occurrence.

Dated: Garden City, New York  
June 19, 2023

Yours, etc.

Decolator, Cohen & DiPrisco, LLP

  
\_\_\_\_\_  
Attorneys for Plaintiff  
1399 Franklin Avenue, Suite 300  
Garden City, New York 11530  
(516) 742-6575

**DEFENDANTS' ADDRESSES:**

MAYOVANEX RODRIGUEZ  
1460 Grand Concourse, Apt 4C  
Bronx, New York 10453

REINEL NEGRON  
120 Standish Road  
Rochester, New York 14626

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
TELL BEHARRY,

Index No.:

Plaintiff,

-against-

**VERIFIED  
COMPLAINT**

MAYOVANEX RODRIGUEZ and REINEL NEGRON,

Defendants.  
-----X

Plaintiff, by his attorneys, Decolator, Cohen & DiPrisco, LLP as and for his Verified  
Complaint, respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF**

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Suffolk, State of New York.
2. At all times hereinafter mentioned, plaintiff was a police officer employed by the New York City Police Department, and was acting within the scope and furtherance of his duties as a police officer.
3. Upon information and belief, at all times hereinafter mentioned, defendant, MAYOVANEX RODRIGUEZ, was and still is a resident of the County of Bronx, State of New York.
4. Upon information and belief, at all times hereinafter mentioned, defendant, REINEL NEGRON, was and still is a resident of the County of Monroe, State of New York.
5. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, by the New York City Police Department, was the owner of a certain 2018 Ford motor vehicle, bearing New York City Police Department registration number 4624-18.

6. That at all times hereinafter mentioned, police officer, Louis Ortiz, operated and controlled a certain 2018 Ford motor vehicle, bearing New York City Police Department registration number 4624-18.

7. That at all times hereinafter mentioned, police officer, Louis Ortiz, operated the aforesaid motor vehicle with the expressed and/or implied consent and permission of the owner/defendant, THE CITY OF NEW YORK, thereof.

8. That at all times hereinafter mentioned, plaintiff, TELL BEHARRY, was a passenger in a certain 2018 Ford motor vehicle, bearing New York City Police Department registration number 4624-18.

9. Upon information and belief, that at all times hereinafter mentioned defendant, REINEL NEGRON, was the owner of a certain 2020 Acura motor vehicle, bearing New York registration number KGS8587.

10. Upon information and belief, that at all times hereinafter mentioned defendant, MAYOVANEX RODRIGUEZ, was the operator of a certain 2020 Acura motor vehicle, bearing New York registration number KGS8587.

11. Defendant, REINEL NEGRON, negligently carelessly and recklessly left the motor vehicle with the keys in the ignition and/or engine running, causing defendant, MAYOVANEX RODRIGUEZ, to take the vehicle.

12. Defendant, REINEL NEGRON, negligently carelessly and recklessly left the motor vehicle with the keys in the ignition and/or engine running, causing defendant, MAYOVANEX RODRIGUEZ, to take the vehicle.

13. On or about July 22, 2022, at or about Buchanan Place, at or near its, intersection with Davidson Avenue, in the County of Bronx, City and State of New York, were and still are public highways.

14. At the time and place aforesaid, and the vehicle operated by, defendant, MAYOVANEX RODRIGUEZ, as aforesaid, came into contact with the vehicle plaintiff was a passenger in.

15. On or about July 22, 2022, at 12:27 a.m., while the plaintiff was lawfully and properly occupying the vehicle at Buchanan Place wit its intersection at Davidson Avenue, in the County of Bronx, the defendant, MAYOVANEX RODRIGUEZ, at the time operated his vehicle in such negligent and careless fashion as to cause a collision to occur, causing severe personal injuries to the plaintiff.

16. The said collision was caused solely and wholly by reason of the negligence and carelessness of the defendants', with no fault or culpable conduct on the part of the plaintiff contributing thereto.

17. The said defendants so negligently and carelessly owned, managed, inspected, operated and controlled their said motor vehicle, that without any negligence or fault on the part of the plaintiff, and solely by reason of the negligence and carelessness of said defendants', defendant's motor vehicle suddenly came into violent contact with the plaintiff's vehicle and, as a result, the plaintiff sustained the injuries hereinafter described.

18. Plaintiff has sustained serious injuries as same are defined in Subdivision (d) of Section 5102 of the Insurance Law of the State of New York and economic loss greater than basic loss as defined in said section of the law.

19. This action falls within one or more of the exceptions set forth in CPLR Section 1601 and 1602.

20. As a result of defendants' negligence as aforesaid, the plaintiff was severely injured both internally and externally, that plaintiff became sick, sore, lame and disabled, and has suffered great pain, shock and mental anguish and will continue to suffer for a long time to come and, upon information and belief, has been permanently injured; that by reason of the foregoing, the plaintiff, has been obligated to and did necessarily employ medical aid and medicines in an attempt to cure said injuries; that plaintiff was incapacitated from work by reason, and by reason of said disabilities plaintiff lost wages, salary and earnings all to plaintiff's damage in an amount in excess of the maximum monetary jurisdiction of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION  
ON BEHALF OF PLAINTIFF AS AGAINST  
DEFENDANTS MAYOVANEX RODRIGUEZ and REINEL NEGRON**

21. Plaintiff repeats, reiterates and realleges all of the facts set forth in paragraphs "1" through "20", inclusive with the same force and effect as though more fully set forth herein.

22. At all times hereinafter mentioned, plaintiff was a police officer employed by the New York City Police Department, acting within the scope and furtherance of his duties as a police officer.

23. The said collision was caused solely and wholly by reason of the negligence and carelessness of the defendants with no fault or culpable conduct on the part of the plaintiff contributing thereto.

24. The said defendants, so negligently and carelessly owned, managed, inspected operated and controlled the said motor vehicle, that without any negligence or fault on the part of

the plaintiff, and solely by reason of the negligence and carelessness of said defendants, defendants motor vehicle suddenly came into violent contact with the vehicle that plaintiff was a passenger in and as a result, plaintiff sustained the injuries hereinafter described.

25. Defendant was negligent in that the said defendants did own, operate, inspect, manage, maintain, supervise and control said motor vehicle in a dangerous, negligent, reckless and careless fashion including but not limited to the following: failed to exercise proper, reasonable and prudent control over said motor vehicle; did operate the said motor vehicle in a reckless, careless and negligent manner; operated the said motor vehicle at a dangerous, reckless, careless and negligent rate of speed; failed to properly control the speed of the said motor vehicle; failed to properly check the speed of the said motor vehicle; failed and omitted to operate the said motor vehicle at a speed that was reasonable and prudent under the conditions then and there existent; failed and omitted to give due regard to the actual and potential hazards then and there existent; failed to properly bring the said motor vehicle to a halt; failed to properly control the said motor vehicle; in leaving the keys in the car and/or the ignition; operated the said motor vehicle in an unskillful manner; permitted, caused and/or suffered to permit or cause an incompetent or otherwise improperly trained and supervised person to use defendant's motor vehicle; failed to properly apply the brakes to the said motor vehicle; failed to stop; failed to signal; failed to stop at the stop sign; failed to look all ways; failed to honk its horn; failed to observe the plaintiff; failed to warn the plaintiff upon approach; failed to properly and prudently observe the road, roadway and traffic conditions then and there existent; failed to keep to the right; failed to properly and prudently maintain the said motor vehicle; failed to avoid the happening of the accident complained of; failed to stay in its lane; negligently and improperly

sideswiped the vehicle plaintiff was a passenger in; the owner of the vehicle is vicariously liable for the actions of the driver; operated the said motor vehicle in a dangerous, illegal, and unsafe fashion; failed to observe the traffic conditions and traffic control devices, signs and signals; followed the plaintiff's vehicle too closely; failed to observe, obey and give due regard for the rules of the road; disregarded traffic signals, signs and devices; the defendants further neglected, omitted and/or were willfully and/or culpably negligent in failing to comply with Vehicle and Traffic Law Sections 1180a, 1144a, 1144a-a, 1144, 1144b, 1163, 1161, 1160a, 1160e, 388, 1172a, 1128, 1140, 1143 and such other codes, rules, violations and statutes that the Court takes judicial notice of.

26. Solely by reason of the foregoing, the plaintiff asserts a cause of action against the defendants pursuant to Section 205-e of the General Municipal Law.

27. That, by reason of the foregoing, plaintiff has sustained damages in an amount in excess of the maximum monetary jurisdiction of all lower Courts that would of otherwise have jurisdiction over this matter.

28. This action falls within one or more of the exceptions set forth in CPLR Section 1601 and 1602.

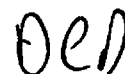
29. Solely by reason of the foregoing, the plaintiff has sustained damages in an amount in excess of the maximum monetary jurisdiction of all lower courts.

**WHEREFORE**, plaintiff demands judgment against defendants in the First, and Second of Action in an amount in excess of the maximum monetary jurisdiction of all lower Courts, together with the interest, and the costs and disbursements of this action.

Dated: Garden City, New York  
June 19, 2023

Yours, etc.

Decolator, Cohen & DiPrisco, LLP



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Attorneys for Plaintiff  
1399 Franklin Avenue, Suite 300  
Garden City, New York 11530  
(516) 742-6575



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STATE OF NEW YORK, COUNTY OF **NASSAU** SS.:

I, the undersigned, an attorney admitted to practice in the courts of New York State,

☐ Certification By Attorney certify that the within has been compared by me with the original and found to be a true and complete copy.

☒ Attorney's Affirmation state that I am the attorney(s) of record for **Plaintiff** in the within action; I have read the foregoing **Summons and Complaint** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by **plaintiff is because the plaintiff resides**

in a county other than the one in which your deponent maintains his office.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: **conversations with plaintiff and office records.**

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: **Garden City, New York; June 19, 2023**

STATE OF NEW YORK, COUNTY OF **NASSAU** ss.: **Decolator, Cohen & DiPrisco, LLP**

I, the undersigned, being duly sworn, depose and say: I am

☐ Individual Verification in the action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

☐ Corporate Verification the of a corporation and a party in the within action; I have read the foregoing and know the contents thereof; and the same is true to my own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on

The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS.:

(If more than one box is check — indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On I served the within

☐ Service By Mail } by mailing a copy to each of the following persons at the last known address set forth after each name below.  
☐ Personal Service on Individual } by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served to be the person mentioned and described in said papers as a party therein:  
☐ Service by Electronic Means } by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a copy to the address set forth after each name.  
☐ Overnight Delivery Service } by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name below.

Sworn to before me on

The name signed must be printed beneath

Index No. Year RJ1 No. Hon.  
SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

TELL BEHARRY,  
  
Plaintiff,  
  
-against-  
  
MAYOVANEX RODRIGUEZ and REINEL NEGRON,  
  
Defendants.

SUMMONS AND COMPLAINT

DECOLATOR, COHEN, & DIPRISCO, LLP  
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To

Signature (Rule 130-1.1-a)

Attorney(s) for

Print name beneath  
Decolator, Cohen & DiPrisco, LLP

Service of a copy of the within is hereby admitted.

Dated,

Attorney(s) for

Please take notice

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a  
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order  
settlement to the HON.  
of the within named court, at  
on

of which the within is a true copy will be presented for  
one of the judges

at M

Dated,

Yours, etc.

DECOLATOR, COHEN, & DIPRISCO, LLP  
ATTORNEYS AT LAW

To

Attorneys for

Attorney(s) for

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